

MASTER SERVICES AGREEMENT

IT Consulting · Software Development · Integrations & Automations

Governed by the Laws of the State of Florida

This Master Services Agreement (the "Agreement") is entered into as of this _____ day of _____, _____, by and between:

Service Provider / Consultant:	_____, a Florida _____, with offices at _____ (the "Consultant").
Client:	_____, a _____, with offices at _____ (the "Client").

Individually referred to as a "Party" and collectively as the "Parties".

1. Definitions

"Statement of Work" (SOW) means a written document executed by both Parties describing a specific engagement, including scope, deliverables, timeline, milestones, and fees. Each SOW is incorporated into and governed by this Agreement.

"Deliverables" means any software, code, integrations, automations, documentation, or other work product produced by Consultant specifically for Client under a SOW.

"Pre-Existing IP" means any intellectual property, tools, frameworks, libraries, or methodologies owned or developed by Consultant prior to or independently of this Agreement.

"Confidential Information" has the meaning set forth in Section 9 of this Agreement.

2. Scope of Services

Consultant agrees to provide IT consulting, software development, systems integration, and automation services (the "Services") as described in one or more Statements of Work. Each SOW shall specify the scope, deliverables, timeline, acceptance criteria, and applicable fees.

In the event of any conflict between this Agreement and a SOW, the terms of the SOW shall control with respect to that specific engagement only. Any services not described in a SOW are outside scope and subject to a Change Order or new SOW.

3. Change Orders

Either Party may request changes to the scope, timeline, or deliverables of an active SOW by submitting a written change request. No change shall be binding until both Parties execute a written Change Order. Consultant is not obligated to begin work on requested changes prior to execution of a Change Order.

4. Fees and Payment

Fees for each engagement shall be set forth in the applicable SOW. Unless otherwise specified, payment shall be structured as milestone-based installments tied to the completion and acceptance of defined deliverables or project phases.

Invoices are due within _____ days of issuance. Payments not received by the due date shall accrue interest at _____% per month. Consultant reserves the right to suspend Services upon written notice if payment is overdue by more than fifteen (15) days.

Client shall reimburse Consultant for pre-approved, reasonable, and documented out-of-pocket expenses. Expenses exceeding \$500 individually require prior written approval from Client.

5. Acceptance of Deliverables

Upon completion of a milestone, Consultant shall notify Client in writing. Client shall have ten (10) business days to provide written acceptance or written notice of specific deficiencies.

If Client does not respond within ten (10) business days, the deliverable shall be deemed accepted. Cosmetic or subjective preferences that do not affect functionality do not constitute valid grounds for rejection.

6. Intellectual Property and License

Pre-Existing IP: Consultant retains full ownership of all Pre-Existing IP. Nothing in this Agreement transfers ownership of Pre-Existing IP to Client.

Deliverables License: Upon receipt of full payment for the applicable SOW, Consultant grants Client a perpetual, irrevocable, worldwide, non-exclusive license to use, modify, and deploy the Deliverables for Client's internal business purposes.

Third-Party Components: Deliverables may incorporate open-source or third-party components subject to their own licenses. Client is responsible for compliance with such third-party license terms.

7. Independent Contractor

Consultant is an independent contractor and not an employee, partner, or agent of Client. Nothing in this Agreement creates an employment relationship, joint venture, or partnership. Consultant is solely responsible for all taxes, insurance, and benefits applicable to its personnel.

8. Non-Solicitation

During the term of this Agreement and for _____ thereafter, neither Party shall directly solicit, recruit, or hire the employees, contractors, or consultants of the other Party who were involved in delivering or receiving Services, without prior written consent.

9. Confidentiality

All information shared between the Parties in connection with this Agreement and any SOW shall be presumed confidential regardless of how it is disclosed. Each Party shall protect the other's Confidential Information using commercially and technically reasonable measures, and shall not disclose it to third parties without prior written consent except as required by law.

This confidentiality obligation shall survive termination of this Agreement for a period of three (3) years, and indefinitely with respect to information that qualifies as a trade secret under Florida Statutes § 688.002.

10. Data Security

To the extent Consultant accesses or processes Client's data or systems, Consultant shall implement commercially and technically reasonable security measures, including encryption in transit and at rest, and access controls limited to personnel with a legitimate need to know.

In the event of a confirmed or suspected data breach involving Client's information, Consultant shall notify Client in writing within forty-eight (48) hours of discovery and cooperate in good faith to contain and remediate the incident.

11. Representations and Warranties

Consultant represents and warrants that: (a) it has the right and authority to enter into this Agreement; (b) the Deliverables will materially conform to the specifications in the applicable SOW at the time of acceptance; and (c) to Consultant's knowledge, the Deliverables will not knowingly infringe any third-party intellectual property rights.

EXCEPT AS EXPRESSLY SET FORTH ABOVE, CONSULTANT PROVIDES THE SERVICES AND DELIVERABLES "AS IS" AND DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED.

12. Limitation of Liability

THE TOTAL CUMULATIVE LIABILITY OF EITHER PARTY FOR ANY AND ALL CLAIMS ARISING OUT OF OR RELATED TO THIS AGREEMENT OR ANY SOW — INCLUDING CLAIMS FOR BREACH OF CONFIDENTIALITY — SHALL NOT EXCEED TWO (2) TIMES THE TOTAL FEES PAID OR PAYABLE UNDER THE SPECIFIC SOW GIVING RISE TO THE CLAIM. THIS CAP APPLIES PER SOW AND SCALES PROPORTIONALLY WITH THE VALUE OF EACH ENGAGEMENT, WITH NO MINIMUM FLOOR.

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE PARTIES ACKNOWLEDGE THAT THESE LIMITATIONS REFLECT A REASONABLE AND NEGOTIATED ALLOCATION OF RISK.

13. Indemnification

Each Party ("Indemnifying Party") shall defend, indemnify, and hold harmless the other Party from third-party claims arising from: (a) material breach of this Agreement; (b) gross negligence or willful misconduct; or (c) in the case of Consultant, any claim that the Deliverables infringe a third party's intellectual property rights, provided such claim does not arise from Client's modifications or misuse.

14. Term and Termination

This Agreement shall commence on the date of execution and remain in effect for _____, automatically renewing for successive one-year terms unless either Party provides thirty (30) days written notice of non-renewal.

Either Party may terminate for cause upon written notice if the other Party materially breaches and fails to cure within fifteen (15) days. Client may terminate any SOW for convenience upon thirty (30) days written notice, paying for all Services performed through the termination date plus non-cancellable expenses.

Upon termination, Sections 6, 8, 9, 10, 12, and 13 shall survive.

15. Support and Maintenance

Ongoing support or maintenance after project acceptance is not included in this Agreement unless separately agreed in a Support SOW or Retainer Agreement. Bug fixes related to deficiencies identified within thirty (30) days of acceptance shall be addressed at no additional charge.

16. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of the **State of Florida** without regard to conflict of law provisions. Disputes shall first be attempted to be resolved through good-faith negotiation within thirty (30) days. If unresolved, disputes shall be adjudicated exclusively in the courts of _____ County, Florida.

17. Miscellaneous

This Agreement, together with all executed SOWs, constitutes the entire agreement between the Parties and supersedes all prior discussions. No amendment shall be valid unless in writing and signed by both Parties. If any provision is found unenforceable, the remaining provisions remain in full force. This Agreement may be executed in counterparts, including via electronic signature platforms. Neither Party may assign this Agreement without prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets.

By:

By:

Name:

Name:

Title:

Title:

Date:

Date:

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